

		lien on a judgment debtor's interest in an LLC is created by service of a notice of motion for charging order on the judgment debtor and on all members or the LLC. (Code Civ. Proc., § 708.320.) There are a number of supplemental orders that can be made with a charging order, including appointment of a receiver. The court, however, has not been convinced an enforceable assignment order can be made in this case on the showing that has been made. Accordingly, the motion is DENIED WITHOUT PREJUDICE to a new motion making a sufficient showing or a different motion seeking a different form of order to aid in enforcing the judgment. Creditor's counsel is ordered to give notice of this ruling.
9.	<i>Hoang vs. Villageway Management, Inc.</i> <i>2021-01218583-</i>	Before the court are two motions filed by plaintiff Nam Neil Hoang (Plaintiff): (1) the motion to strike or tax costs requested by defendants Villageway Management, Inc., Country Community Association, Michelle Morand, Jim Pijloo, and Shayaan Vasi (collectively, Defendants) for trial court proceedings, and (2) the motion to strike or tax costs requested by Defendants for appellate court proceedings. As more fully set forth below, the motion regarding the trial court costs is DENIED, and the motion regarding the appellate court costs is GRANTED. <u>Motion No. 1: Trial Court Costs</u> Defendants filed a memorandum of costs after entry of judgment in the superior court matter requesting \$22,575.94 in costs. (ROA 460, 462.) As judgment was entered on May 3, 2024, and the memorandum of costs was filed on May 17, 2024, it is timely. Plaintiff had until 15 days after service of the memorandum to file a motion to strike or tax the costs. (Cal. Rules Ct. rule 3.1700(a).) Instead of filing the motion in a timely manner, Plaintiff waited 21 months beyond the filing deadline to file the motion. (ROA 514.) As the motion is untimely, it must be DENIED. (<i>Douglas v. Willis</i> (1994) 27 Cal.App.4th 287, 289 ["The 'failure to file a motion to tax constitutes a waiver of the right to object'"].) In addition and in response to Plaintiff's argument, the court notes the filing of a notice of appeal does not deprive the trial court of jurisdiction to award costs to the prevailing party. Costs are a collateral matter not impacted by any stay that may arise from an appeal from the judgment. (<i>Bankes v. Lucas</i> (1992) 9 Cal.App.4th 365, 368-69.) A judgment on the appeal also has been entered affirming the ruling on the summary judgment motion, and jurisdiction

		had been returned to this court. Plaintiff's fee and costs waivers in the superior court action do not apply to costs awarded to the prevailing party and Government Code section 68637 does not require a hearing in the present matter as this is not a family law matter. (Gov. Code § 68637, subds. (d) & (e).) Finally, all the costs in the memorandum are recoverable under Code of Civil Procedure section 1033.5 and Defendants have produced billing receipts showing the costs were incurred; Plaintiff provided no valid arguments the costs were not permissible. Based on the foregoing, the motion to strike or tax the costs in the superior court action is DENIED. Defendants are hereby awarded \$22,575.94 in costs against Plaintiff on the superior court action. <u>Motion No. 2: Appellate Costs</u> In its ruling on Plaintiff's appeal, the Court of Appeal stated Defendants were the prevailing party and were entitled to recover their costs on appeal. (ROA 478.) To recover costs on appeal, the memorandum of costs must be filed and served within 40 days of issuance of the remittitur. (Cal. Rules Ct., rule 8.278(c)(1).) The remittitur was issued on January 15, 2026. (ROA 478.) The memorandum requesting \$3,784.10 in costs incurred on the appeal was not filed until February 26, 2026—i.e., 42 days later. (ROA 511.) This 40-day period is not extended based on the means of service because it runs from the remittitur's issuance, not its service. (<i>Wash v. Banda-Wash</i> (2025) 108 Cal.App.5th 561, 570.) A party awarded costs who fails to file and serve the costs memorandum within the prescribed time period waives the costs recovery. (<i>Moulin Electric Corp. v. Roach</i> (1981) 120 Cal.App.3d 1067, 1070.) Defendants' memorandum of costs on appeal therefore is untimely and they have waived such costs. Based on the foregoing, the motion to tax or strike costs on appeal is GRANTED, and Defendants shall not recover any costs on appeal. Defendants' counsel is ordered to give notice of these rulings.
10.	<i>Saddozai vs. American Contractors Indemnity Company</i>	Before the court are the following two motions: (1) the motion for order awarding attorney fees as an item of post-judgment costs filed on July 6, 2026, by plaintiff and judgment creditor Legal Service Bureau Inc., dba Global Fugitive Recovery (LBS), and (2) the motion to strike or tax costs filed on July 16, 2026, by defendants and judgment

2015-00816859	debtors Orange County Bail Bonds, Inc. (OCBB) and Robert Miller (Miller). <u>Motion No. 1: Motion for Attorney Fees as Post-Judgement Costs</u> By this motion LBS seeks to recover from Miller certain attorney fees it incurred as an item of post-judgment costs. LBS is clear it seeks to recover the fees from Miller only in light of OCBB's discharge in bankruptcy. Specifically, LBS seeks to recover \$175,462.96 in attorney fees for work performed by Marshack Hays Wood LLP as LBS's bankruptcy counsel in OCBB's bankruptcy proceedings, (2) \$22,500 in attorney fees for work performed by Aires Law Firm as LBS's counsel in those same bankruptcy proceedings, and (3) \$30,000 in attorney fees for work performed by Aires Law Firm in this court to obtain the amended judgment adding Miller as a judgment debtor. The total sought is \$227,962.96, plus additional unspecified fees incurred in preparing, filing, and litigating this motion. LBS brings this motion pursuant to Code of Civil Procedure sections 685.040 and 685.080. Section 685.040 authorizes a judgment creditor to recover its reasonable and necessary costs in enforcing its judgment. Those costs may include attorney fees when recovery of attorney fees is otherwise provided by law or if the underlying judgment includes an award of attorney fees pursuant to Code of Civil Procedure section 1033.5, subdivision (a)(10)(A). Code of Civil Procedure section 685.080 authorizes the judgment creditor to bring a noticed motion to recover such fees and provides "[t]he motion shall be made before the judgment is satisfied in full, but not later than two years after the costs have been incurred." According to the billing statements attached to the motions, the fees LBS seeks to recover (excluding the work done on this motion) were incurred between July 18, 2019, and June 1, 2026. Based on the two-year period set forth in section 685.080 and the fact this motion was filed on July 6, 2026, Miller and OCBB argue LBS is barred from recovering all fees incurred prior to July 6, 2024—i.e., more than two years before this motion was filed—which amounts to the vast majority of the fees. LBS argues this two-year period was extended based on 11 U.S.C. section 108, subdivision (c), which provides, "if applicable nonbankruptcy law . . . fixes a period for commencing or continuing a civil action in a court other than a bankruptcy court on a claim against the debtor . . .
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	and such period has not expired before the date of the filing of the petition, then such period does not expire until the later of [¶] (1) the end of such period, including any suspension of such period occurring on or after the commencement of the case; or [¶] (2) 30 days after notice of the termination or expiration of the stay under section 362, 922, 1201, or 1301 of this title, as the case may be, with respect to such claim.” From LBS’s perspective, Code of Civil Procedure sections 685.040 and 685.080 are nonbankruptcy laws that authorize this motion and fix a period for commencing or continuing a civil action in a court other than a bankruptcy court, and the automatic stay that arose from OCBB’s bankruptcy prevented LBS from bringing this motion in this court any earlier. As such, LBS contends it had until 30 days after the stay was lifted to bring this motion and seek recovery of all fees incurred during OCBB’s bankruptcy regardless of whether they were incurred more than two years prior to the filing of this motion. Application of section 108, subdivision (c), depends on the existence of “the following five elements: (1) applicable nonbankruptcy law; (2) must fix a period; (3) to commence or continue a civil action on a claim against the debtor; (4) in a court other than a bankruptcy court; and (5) that period must not have expired when the petition is filed.” (<i>In re Gilman</i> (B.A.P. 9th Cir. 2019) 603 B.R. 437, 444 (<i>Gilman</i>), <i>aff’d sub nom. Phillips v. Gilman</i> (9th Cir. 2020) 836 F.App’x 511.) As in <i>Gilman</i>, elements four and five are fatal to LBS’s position. Although LBS has brought this current motion in a court other than a bankruptcy court, <i>Gilman</i> makes clear LBS could have brought this motion earlier in the bankruptcy court regardless of any automatic stay. As such, the automatic stay did not prevent LBS from seeking these fees earlier, and therefore element number four is not satisfied. LBS has not shown it could not have brought a motion in the bankruptcy court to recover the fees sought in this motion for work done in the bankruptcy court, as was done in <i>Gilman</i>. Moreover, regardless of whether LBS could or could not have sought these fees earlier in the bankruptcy court, section 685.080’s two-year deadline did not commence until after OCBB filed its bankruptcy petition, and therefore section 108, subdivision (c), does not apply to that two-year deadline. Indeed, as the <i>Gilman</i> court explained, “Creditors sought approval under CCP § 685.080 for
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	attorneys' fees incurred <i>postpetition</i>. By its plain language, § 108(c) extends prepetition statutes of limitation or duration at risk of expiring postpetition; it applies if 'such period has not expired before the date of the filing of the petition . . . ' 11 U.S.C. § 108(c). Because all of the fees were incurred postpetition, CCP § 685.080's two-year period did not commence prepetition and, again, § 108(c) does not apply." (<i>Gilman, supra</i>, 603 B.R. at p. 445 (italics original; fn. omitted).) LBS offers no persuasive argument as to the inapplicability of section 108, subdivision (c), based on section 685.080's two-year period being a postpetition deadline. LBS seeks to minimize or distinguish <i>Gilman</i>, but those efforts are unpersuasive. Yes, <i>Gilman</i> is not binding authority; it is merely persuasive authority. This court, however, finds it persuasive and agrees with its interpretation and application of the statutes and laws at issue here. LBS's argument <i>Gilman's</i> holding is conditioned on the creditor's election of the bankruptcy forum and cannot be squared with Code of Civil Procedure section 685.090 is not persuasive because LBS cites nothing that prevented LBS was seeking and obtaining an award of these fees in the bankruptcy court. Moreover, LBS does not offer any response to <i>Gilman's</i> ruling regarding section 685.080's two-year period being a postpetition matter not subject to section 108, subdivision (c). LBS also seeks to rely on other Ninth Circuit authority, such as <i>In re Swintek</i> (9th Cir. 2018) 906 F.3d 1100, and <i>In re Spirtos</i> (9th Cir. 2000) 221 F.3d 1079. <i>Gilman</i>, however, distinguished those authorities and found them inapplicable. (<i>Gilman, supra</i>, 603 B.R. at p. 448.) This court finds <i>Gilman's</i> rationale on these cases persuasive. Accordingly, the court concludes the two-year time period set forth in section 685.080 applies in this case and limits LBS's recovery of attorney fees to only those fees necessarily and reasonably incurred on or after July 6, 2024—i.e., two year before LBS filed this motion. Miller and OCBB contends the court should deny the motion in its entirety—not just as to the fees incurred more than two years before the motion was filed—because they belief the fee request is unreasonably inflated based on LBS including fees Miller and OCBB contend are clearly barred by section 685.080's two-year period and LBS's request for virtually every hour spent regardless of their reasonableness and necessity. The court acknowledges its
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	authority to outright deny a fee request it finds unreasonably inflated (see, e.g., <i>Serrano v. Unruh</i> (1982) 32 Cal.3d 621, 635), but the court does not find LBS's request to rise to that level. Although the court concludes that vast majority of the fees sought are barred by section 685.080's two-year period, that conclusion is based on nonbinding authority from a Bankruptcy Appellate Panel because there is no California law directly on point. Simply put, neither the request for these older fees nor the inclusion of any particular fees rises to the level to justify an outright denial. That leaves the court to examine the reasonableness and necessity of the fees sought from the permissible two-year period. As with nearly all fee requests, the court must start with determining the lodestar figure—i.e., the reasonable hourly rate for each professional who performed the work multiplied by the number of hours reasonably expended. Starting with the \$175,462.96 in attorney fees for work performed by Marshack Hays Wood LLP, there are only three entries that fall within the permissible two-year period. The first is an entry of 0.20 hours by a paralegal on May 13, 2025, for reviewing a tentative ruling for post-confirmation status conference and then emailing the "MHW Team." The second is an entry of 0.20 hours by a partner for written communication with another partner and the accounting department about closing the case and the outstanding balance. The final entry is for four hours, at \$795 per hour, for a total of \$3,180, for conferring with co-counsel and preparing a declaration in support of this fee motion. The court finds none of these entries to be properly recoverable. Although four hours to confer with counsel and prepare a declaration in support of this motion may be reasonable in the abstract, the court finds it is not appropriate to award this time when the court's ruling denies all fees sought by this counsel as being outside the permissible two-year time period. Similarly, the court finds it is not appropriate to award fees for two partners corresponding about closing the file and the outstanding balance. That is an administrative matter not properly charged to the opponent. Finally, a single isolated entry by a paralegal who checked in on a tentative ruling also is an administrative matter. Based on the foregoing, all fees requested for work performed by Marshack Hays Wood LLP are denied.
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	Next, the court examines the fees sought by the Aires Law Firm. All time requested was performed by attorney Timothy Carl Aires. He seeks an hourly rate of \$750 based on his nearly 40 years of experience. Based on that experience, the nature of the work, and the market for such work here in Orange County, the court finds that hourly rate to be reasonable and appropriate. The time spent by Mr. Aires is broken into two groups—i.e., work performed in the bankruptcy court and work performed in this court to amend the judgment. As for the work in the bankruptcy court, it was performed between August 20, 2019, and December 24, 2025. As stated above, only the work performed on or after July 6, 2024, is recoverable. That leaves six entries between November 29 and December 24, 2025, totaling 13.6 hours. This time was spent on work relating to LBS’s opposition to the motion to close the bankruptcy case. Miller and OCBB contend this work is not recoverable because it is not time reasonably spent seeking to enforce the judgment. The court disagrees. This time was spent in an effort to, <i>inter alia</i>, preserve LBS’s ability to seek to add Miller to the judgment. Although the case was ultimately closed, the court nonetheless finds this work is recoverable and the amount of hours reasonable. When the \$750 hourly rate is applied to these 13.6 hours, the total is \$10,200. As for the work performed in this court to obtain an order amending the judgment to add Miller as a judgment debtor, Mr. Aires states he spent a total of 40 hours between January 14 and June 6, 2026, for a total of \$30,000 in attorney fees. The court has reviewed the time entries for this work and finds the tasks and hours to be reasonable. Miller and OCBB object to some entries, such as the work to prepare notices regarding the statement of decision and judgment in the declaratory relief action regarding alter ego. Those notices, however, were filed in this case to provide the court with notice of the ruling and judgment in the other case. The court finds those to be appropriate. Accordingly, the court awards the entire \$30,000 sought for this work. Finally, the court denies the request for fees incurred in preparing, filing, and litigating this motion. Although fees for bringing a fee motion generally are recoverable, LBS has not requested any specific amount of fees for this motion nor presented any evidence from the attorney who prepared this motion to support an award of fees in any amount. As stated above, there is a request for four hours by bankruptcy counsel, but that is separately denied for the
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		reasons already discussed. The request for fees relating to this motion is denied. Based on the foregoing, the motion is GRANTED IN PART and DENIED IN PART as stated above. LBS is awarded \$40,200 in attorney fees as against Miller given OCBB has been discharged in bankruptcy. <u>Motion No. 2: Motion to Tax/Strike Costs</u> On July 6, 2026, LBS also filed a memorandum of costs after judgment seeking the identical attorney fees sought on the foregoing motion. With reference to when the fees were incurred, the memorandum of costs instructs the reader to see the motion. In response to this memorandum of costs, Miller and OCBB filed a motion to tax or strike these costs, explaining they brought the motion in an abundance of caution to ensure the fees sought in the memorandum of costs are treated the same as the fees sought in LSB's fee motion. Miller and OCBB acknowledge LBS is entitled to recover what fees they are awarded on the fee motion, but seek to make sure LBS is not awarded any greater or duplicative fees in connection with the memorandum of costs. In its opposition, LBS asserts the memorandum of costs is merely an alternative means of seeking the same fees sought on the fee motion. Accordingly, the foregoing analysis regarding the fee motion applies equally to this motion to strike/tax, and LBS should be awarded the same fees it is awarded on the fee motion, but not any duplicative recovery. Based on the foregoing, the motion to tax/strike is GRANTED IN PART and DENIED IN PART. Pursuant to the memorandum of costs, LBS may recover the same \$40,200 in attorney fees awarded on the fee motion, but all other fees sought pursuant to the memorandum of costs are stricken for the reasons set forth above on the fee motion. Again, this is the same \$40,200 awarded on the fee motion, and LBS is not entitled to any duplicative recovery of that amount. LBS's counsel is ordered to give notice of these rulings.
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